IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,062
Filing Date:	March 8, 2026
Confirmation Number:	9071
Art Unit / Examiner:	TC 2100 / ADD2AFC
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	PORTABLE DATA CARTRIDGE WITH OPTICAL INTERFACE

APPLICANT'S SUPPLEMENTAL RESPONSE TO PRE-EXAMINATION NOTICES

(37 CFR §§ 1.111, 1.121, 1.125; MPEP § 608.01(q))

(SUPPLEMENTING THE INITIAL RESPONSE FILED OCTOBER 9, 2026)

(PETITION FOR ONE-MONTH EXTENSION OF TIME EXTENDING TIMELINESS TO OCTOBER 13, 2026,
CONFIRMATION OF $94.00 EXTENSION AND $60.00 SUSPENSION FEES PAID ON OCTOBER 9, 2026,
CONDITIONAL REQUEST FOR SIX-MONTH SUSPENSION OF ACTION UNDER 37 CFR § 1.103(a),
SUBSTITUTE SPECIFICATION WITH NO NEW MATTER CERTIFICATION,
MARKED-UP COPY UNDER 37 CFR § 1.125(c),
REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, FORMAL STANDALONE DRAWINGS,
PERFECTED AIA INVENTOR DECLARATION, AND REQUEST FOR DEPOSIT ALLOCATION UNDER 37 CFR § 1.25(b))

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive supplemental follow-up to the *Notice to File Missing Parts* mailed July 10, 2026, the *Notice of Incomplete Reply* mailed September 9, 2026, and supplementing the initial response filed

October 9, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this comprehensive Supplemental Formalities Response.

Statutory Timeliness & Federal Holiday Rollover (35 U.S.C. § 21 & 37 CFR § 1.7(a)): Applicant respectfully notes that under the one-month extension of time remitted on October 9, 2026, the reply deadline of October 10, 2026 fell on a Saturday, rolling forward to Monday, October 12, 2026. Because today, October 12, 2026, is Columbus Day, an official Federal Holiday, the statutory period for reply automatically rolls over to the next succeeding business day, **Tuesday, October 13, 2026**, pursuant to 35 U.S.C. § 21 and 37 CFR § 1.7(a). This supplemental filing is therefore fully timely.

Operative Superseding Instrument Standard:
Applicant expressly notes that in the event of any discrepancy or conflict between the documents submitted herein and the prior version filed on October 9, 2026, the perfected instruments contained within this October 12, 2026 Supplemental Response submission shall strictly control and **supersede** the October 9, 2026 filings in all respects.

I. WRITTEN ASSERTION OF SMALL ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally asserts and reaffirms entitlement to **Small Entity status** under 37 CFR § 1.27 and 35 U.S.C. § 123. All statutory fees are computed strictly under the Small Entity fee schedule.

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To pre-emptively cure every latent technical and formal informality before the application is assigned to an examining art unit, and curing omissions in the October 9, 2026 filing (specifically supplying the previously omitted marked-up copy of the specification and formal standalone drawing sheets), Applicant concurrently submits the following perfected instruments in this single, unified 9-document electronic envelope:

1. **Formal Certification of No New Matter (37 CFR § 1.125(b) & MPEP § 608.01(q)):** Applicant hereby formally certifies pursuant to 37 CFR § 1.125(b) and MPEP § 608.01(q) that the accompanying Substitute Specification contains **NO NEW MATTER**. The changes incorporated into the Substitute Specification relative to the as-filed specification are strictly

limited to the excision of embedded graphic images (relocated to formal standalone drawing sheets under 37 CFR § 1.84), excision of embedded abstract and claims (relocated to standalone sheets under 37 CFR §§ 1.72(b), 1.75(h)), enforcement of strict double line spacing under 37 CFR § 1.52(b)(2)(i), and uniform flush-left paragraph formatting.

2. **Standalone Substitute Specification (37 CFR § 1.125(c)) [Patent Center Description: "Specification"]:**
   Applicant submits both a **Clean Copy of the Substitute Specification** and the mandatory **Marked-Up Copy** (showing all excisions in strike-through under 37 CFR § 1.121(b)(1)(iii)), ensuring the specification contains purely technical disclosure text without extraneous metadata or procedural blocks, curing the defect under MPEP Form Paragraph 6.28.02.

3. **Standalone Formal Drawing Sheets (37 CFR § 1.84) [Patent Center Description: "Drawings - only black and white line drawings"]:**
   Applicant submits standalone formal drawing sheets containing **FIG. 1 and FIG. 2** across Sheets 1–2. Each sheet bears the mandatory phrase **"Replacement Sheet"** in the top margin pursuant to 37 CFR § 1.121(d).

4. **Perfected Universal AIA Inventor Declaration (35 U.S.C. § 115, 37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant submits an executed, perfected AIA Inventor Declaration adhering strictly to the portfolio-wide canonical template, satisfying all statutory requirements under 37 CFR § 1.63 and MPEP § 605, including the mandatory authorization averment, complete legal domicile, and criminal liability warning under 18 U.S.C. § 1001.

5. **Standalone Replacement Claims (37 CFR § 1.75(h)) [Patent Center Description: "Claims"]:**
   Applicant submits standalone Replacement Claims 1–5, commencing on a separate sheet in strict double spacing, under the pure statutory heading "CLAIMS", with preserved itemized sub-clause structure on Claim 1.

6. **Standalone Replacement Abstract (37 CFR § 1.72(b)) [Patent Center Description: "Abstract"]:**
   Applicant submits a standalone Replacement Abstract, commencing on a separate sheet in strict double spacing, under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

7. **Supplemental Petition for Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a Supplemental Petition for Extension of Time under 37 CFR § 1.136(a), confirming that the statutory fee for a One-Month Extension ($94.00, Fee Code 2251) was paid in full on October 9, 2026, extending the response period through October 13, 2026.

8. **Supplemental Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**
   Applicant submits a Supplemental Request for Suspension of Action under 37 CFR § 1.103(a), confirming that the required $60.00 processing fee (Fee Code 2830) was paid in full on October 9, 2026, requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing.

III. STATUTORY FEE RECONCILIATION, REQUEST FOR DEPOSIT ALLOCATION (37 CFR § 1.25(b)), AND MACRO PORTFOLIO EQUITY

A. Confirmation of Prior Electronic Fee Payments on Record

Official Office records and Patent Center Electronic Payment Receipt (Transaction ID: **E202609F59056018**, receipted October 9, 2026) confirm that Applicant successfully remitted the following statutory fees:

- **Extension of Time within First Month (Fee Code 2251): $94.00** (Paid in full).
- **Suspension Processing Fee (Fee Code 2830): $60.00** (Paid in full).
- **Total Remitted on October 9, 2026: $154.00** (Paid via Credit Card).

These fee liabilities are fully satisfied on the docket. Zero additional payment is due at checkout today.

B. Respectful Request for Allocation of Unapplied Deposit Funds (37 CFR § 1.25(b) & MPEP § 509)

Official Office records (specifically the Notice of Incomplete Reply mailed September 9, 2026) confirm that the Office of Finance holds **$450.00 in unapplied funds on deposit** under this application serial number.

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant respectfully requests that the Office allocate this existing **$450.00 unapplied deposit credit** directly toward the statutory pre-examination base fees under 37 CFR § 1.16.

C. Request for Administrative Notice of Fee Deficiency (37 CFR § 1.53(f)) & Macro Portfolio Equity

After applying the $450.00 deposit credit against the gross base fees demanded in the Notice of Incomplete Reply, the net balance is **$520.00**. Applicant respectfully requests that the Office assess this net balance of $520.00 via a formal **Notice of Fee Deficiency** pursuant to 37 CFR § 1.53(f) and MPEP § 506.

Applicant respectfully notes the equitable context of the broader portfolio: across Applicant's 102 patent applications, the USPTO Office of Finance currently holds over **$32,758.00** in unapplied pro se deposit funds detained by the agency without interest. This macro capital reserve provides substantial equitable security while pre-examination formalities are perfected and deficiency notices are processed.

IV. CONCLUSION

All formal and technical instruments having been fully perfected herein, statutory timeliness secured through October 13, 2026 via the Columbus Day federal holiday rollover (35 U.S.C. § 21), and this submission designated to supersede the October 9, 2026 filings in the event of any conflict, Applicant respectfully requests that the Office of Patent Application Processing (OPAP) accept this response as timely and complete, issue an administrative Notice of Fee Deficiency under 37 CFR § 1.53(f) for the remaining base fee balance, and advance Application No. 19/560,062 to an examining art unit.

Respectfully submitted,

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